

Inc. (1996) 45 Cal.App.4th 990, 1001.) The eighth cause of action as to GW fails for the same reason as the others. No individuals involved in the altercation with Plaintiff were employees, contractors, or agents of GW.

Ninth Cause of Action for Negligent Infliction of Emotional Distress

"[T]here is no independent tort of negligent infliction of emotional distress." (*Potter v. Firestone Tire & Rubber Co.*, *supra*, 6 Cal.4th at p. 984.) The tort is a species of negligence, which requires the traditional elements of duty, breach of duty, causation, and damages. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) The court finds the ninth cause of action fails for the same reasons as the third cause of action for negligence.

Evidentiary Objections

The court has liberally construed Plaintiff's submitted declaration and considered the two attached exhibits without ruling on GW's evidentiary objections. The court now declines to rule on GW's objections because none are material to the disposition of Defendant's motion. (Code Civ. Proc., § 437c, subd. (q).)

Conclusion

In conclusion, the court finds GW meets its burden to show Plaintiff cannot prove at least one essential element of each of the nine causes of action alleged against GW. The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court grants GW's motion for summary judgment against Plaintiff.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)

Tentative Ruling

Pelayo v. Nations Roof West, LLC
Superior Court Case No. 23CECG01236

August 11, 2026 (Dept. 501)

Report by Plaintiff Pursuant to Code of Civil Procedure Section 384, Subdivision (b)

Tentative Ruling:

To approve the report by the class settlement administrator. To direct class counsel to submit, within five days, an updated amended order granting final approval of the settlement and entering judgment which accounts for the disposition of all funds. In the future though, funds from uncashed checks should not be distributed until authorized by the court. (See Code Civ. Proc., § 384, subd. (b) ["After the report is received, the court shall amend the judgment *to direct the defendant to pay* the sum of the unpaid residue or unclaimed or abandoned class member funds ..."], emphasis added.)

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